

360, 365.¹² Searches of the dwelling house were the special object of this universal condemnation of official intrusion.¹³ Night-time search was the evil in its most obnoxious form.¹⁴ Few reported cases have presented all of the manifold aggravating circumstances which petitioners here allege—intrusion *en masse*, by dark, by force, unauthorized by warrant, into an occupied private home, without even the asserted justification of belief by the intruders that the inhabitants were presently committing some criminal act within; physical abuse and the calculated degradation of insult and forced nakedness; sacking and disordering of personal effects throughout the home; arrest and detention against the background terror of threatened criminal proceedings. Wherever similar conduct has appeared, the courts have unanimously condemned police entries as lawless.¹⁵

¹² See *Huckle v. Money*, 2 Wils. 205; *Wilkes v. Wood*, 19 How. St. Tr. 1153; *Bessemer v. Eidge*, 162 Ala. 201, 50 So. 270; 1 Cooley's Constitutional Limitations (8th ed. 1927) 610-615; Fraenkel, Concerning Searches and Seizures, 34 Harv. L. Rev. 361 (1921), containing a collection of authorities.

¹³ See, e. g., *Thurman v. State*, 116 Fla. 426, 156 So. 484; compare *Simpson v. State*, 152 Tex. Cr. R. 481, 215 S. W. 2d 617, with *McClannan v. Chaplain*, 136 Va. 1, 15-17, 116 S. E. 495. Note the common legislative proscription upon the search of private homes by officers otherwise authorized to make entries for the enforcement of prohibition laws and other regulatory statutes. E. g., National Prohibition Act, tit. II, § 25, 41 Stat. 305, 315; and see *Cornelius*, Search and Seizure (2d ed. 1930), §§ 135-144.

¹⁴ See 2 Hale, Pleas of the Crown (Wilson ed. 1800) 150.

¹⁵ See, e. g., *People v. Cahan*, 44 Cal. 2d 434, 282 P. 2d 905 (1955); *Sarafini v. San Francisco*, 143 Cal. App. 2d 570, 300 P. 2d 44 (1956); *Ware v. Dunn*, 80 Cal. App. 2d 936, 183 P. 2d 128 (1947); *Walker v. Whittle*, 83 Ga. App. 445, 64 S. E. 2d 87 (1951); *People v. Dalpe*, 371 Ill. 607, 21 N. E. 2d 756 (1939); *Hart v. State*, 195 Ind. 384, 145 N. E. 492 (1924); *Johnson v. Commonwealth*, 296 S. W. 2d 210 (Ky. App. 1956); *Deaderick v. Smith*, 33 Tenn. App. 151, 230 S. W. 2d 406 (1950).